

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SHARON WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN PENARANDA, Shield No. 1487, POLICE
OFFICER FIDEL ROSARIO, Tax Reg. No. 943759,
LIEUTENANT EDWIN REYES, LIEUTENANT SEAN
MOHAN, Tax Reg. No. 916249, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
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SUMMONS

Index No.:

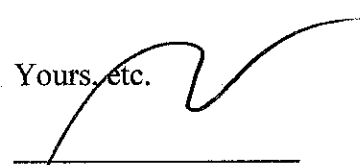
The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
April 6, 2015

Yours, etc. 

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
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New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007

POLICE OFFICER STEPHEN PENARANDA, Shield No. 1487, PSA 2, 560 Sutter Ave., Brooklyn, New York, 11207

POLICE OFFICER FIDEL ROSARIO, Tax Reg. No. 943759, 42nd Precinct, 830 Washington Avenue, Bronx, New York 10451

LIEUTENANT EDWIN REYES, Tax Reg. No. 919617, Transit Bureau-Anti-Terrorism

LIEUTENANT SEAN MOHAN, Tax Reg. No. 916249, PSA 5, 221 East 123rd Street, New York, NY 10029

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, SHARON WILLIAMS, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the First, Fourth, and Fourteenth Amendments to the
United States Constitution, and the common law and the laws of the State of New York. On
April 20, 2012, at approximately 2:38 p.m., plaintiff Sharon Williams, while lawfully present in
the lobby of her apartment building, located at 400 East 105th Street, New York, New York, was
subject to false arrest and false imprisonment. Thereafter, the defendant police officers
maliciously prosecuted plaintiff and denied her the right to a fair trial. Thereafter, when plaintiff
was vomiting and became ill, the officers were deliberately indifferent to her medical condition
and refused to provide her with medical attention. Plaintiff was deprived of her constitutional
and common law rights when the individual defendants unlawfully arrested, imprisoned,
maliciously prosecuted, denied her a right to a fair trial and were deliberately indifferent to her
medical needs in violation of the Fourth, Fifth and Fourteenth Amendments to the United States
Constitution.

PARTIES

2. Plaintiff SHARON WILLIAMS is a resident of the State of New York.
3. Police Officer STEPHEN PENARANDA, Shield No. 1487, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Police Officer STEPHEN PENARANDA, Shield No. 1487, was at all times relevant herein, assigned to the PSA 5 command, and is currently assigned to the PSA 2 command.
5. Police Officer STEPHEN PENARANDA, Shield No. 1487, is being sued in his individual and official capacities.
6. Police Officer FIDEL ROSARIO is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Police Officer FIDEL ROSARIO is and was at all times relevant herein, assigned to the PSA 5 command.
8. Police Officer FIDEL ROSARIO is being sued in his individual and official capacities.
9. Lieutenant EDWIN REYES is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Lieutenant EDWIN REYES is and was at all times relevant herein, assigned to the PSA 5 command.
11. Lieutenant EDWIN REYES is being sued in his individual and official capacities.
12. Lieutenant SEAN MOHAN is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. Lieutenant SEAN MOHAN is and was at all times relevant herein, assigned to the PSA 5 command.
14. Lieutenant SEAN MOHAN is being sued in his individual and official capacities.
15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On April 20, 2012, at approximately 2:38 p.m., plaintiff was lawfully present in the lobby of her apartment building, located at 400 East 105th Street, New York, New York.

23. On April 20, 2012, at approximately 2:38 p.m., plaintiff was about to exit her building when she noticed that an individual named Abdul Mu-Min was sitting on the stoop leading to the front door of her building.

24. Plaintiff believed that Abdul Mu-Min was sitting on her front stoop in order to harass her and plaintiff was concerned that he would call 911 and report that plaintiff had violated an order of protection if she exited the building.

25. In fact, earlier that same day at approximately 10:00 a.m., Mr. Mu-Min called 911 and falsely reported that plaintiff violated an order of protection by following him down the street. Defendant police officer STEPHEN PENARANDA responded to the 10:00 a.m. complaint and visited plaintiff at her apartment, where he made no arrest because he had just seen plaintiff and witnessed that she was not engaged in the behavior alleged by Mr. Mu-Min.

26. In order to ensure that a second false complaint was not made against her in when plaintiff tried to leave her apartment building at 2:38 p.m., Plaintiff called 911 and asked for an officer to come to the scene.

27. Shortly thereafter, defendant police officer STEPHEN PENARANDA responded for a second time to the location of plaintiff's complaint in the lobby of her building, located at 400 East 105th Street, New York, New York, and plaintiff explained the situation to him. Plaintiff also told defendant police officer STEPHEN PENARANDA that she wanted to file a complaint against Mr. Mu-Min for harassing her by sitting on the stoop of her building even though he did not live there.

28. The defendant police officer STEPHEN PENARANDA, however, refused to file a report of the incident.

29. Plaintiff then asked defendant police officer STEPHEN PENARANDA for his badge number.

30. Upon information and belief, defendant police officer STEPHEN PENARANDA thought that because plaintiff requested his badge number, she planned to file a complaint against him.

31. As a result, in response to plaintiff's request for his badge number, he unlawfully handcuffed, searched, and falsely arrested plaintiff without probable cause or legal justification.

32. At no time did plaintiff commit a crime, nor did Police Officer STEPHEN PENARANDA have reason to believe she committed a crime.

33. Defendants then unlawfully transported plaintiff to the PSA 5 stationhouse, where plaintiff was fingerprinted, photographed, searched, and placed into a holding cell.

34. The stress of being falsely arrested caused plaintiff to suffer a severe migraine headache while she was detained in the holding cell and she began to vomit in the holding cell.

35. Plaintiff informed the defendant police officers at the stationhouse that she was vomiting, in severe pain, ill and she therefore requested medical treatment.

36. The defendant police officers observed plaintiff vomiting, and saw she needed medical attention, but the defendant officers told plaintiff to "shut up" and refused to obtain medical attention for her.

37. Plaintiff was detained for several hours in the holding cell at the stationhouse and then she was transported to Manhattan Central Booking.

38. The individually named defendant police officers falsely communicated to the New York County District Attorney's Office that plaintiff committed a crime earlier that

morning, based upon Mr. Mu-Min's complaint from 10:00 a.m., which police officer STEPHEN PENARANDA investigated, determined that plaintiff did not commit a crime and closed the complaint without arresting plaintiff. Defendant PENARANDA communicated the false information to the District Attorney's office despite knowing that they lacked a legal basis to arrest plaintiff and had no objective basis to allege plaintiff committed a crime.

39. Plaintiff was held at Manhattan Central Booking until approximately 8:00 p.m. on April 21, 2012, when she was arraigned and released from police custody.

40. Thereafter, on December 11, 2012, after making approximately 4 court appearances, all charges against plaintiff were dismissed against plaintiff pursuant to a motion by the District Attorney.

41. Some of the defendant police officers observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable arrest, imprisonment, and deliberate disregard of plaintiff's medical needs.

42. The false arrest, false imprisonment, malicious prosecution, and deliberate disregard of plaintiff's medical needs by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth, Fifth Amendment and Fourteenth Amendment Rights

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested and falsely imprisoned, maliciously prosecuted, denied plaintiff due process and a right to a fair trial and deprived plaintiff of her Fourth Amendment rights by committing the tort of abuse of process, all without probable cause or any legal justification in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Malicious Prosecution

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

54. Defendants commenced and continued a criminal proceeding against plaintiffs.

55. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which she was prosecuted.

56. Upon information and belief, the prosecution and criminal proceedings terminated favorably for plaintiff on or about December 11, 2012.

57. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 58 with the same force and effect as if fully set forth herein.

60. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

61. Defendants filled out false police reports, and forwarded them to prosecutors in the New York County District Attorney's Office.

62. Defendants signed false supporting depositions in New York County Criminal Court and forwarded them to prosecutors in the New York County District Attorney's Office.

63. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

64. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Malicious Abuse of Process

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 65 with the same force and effect as if fully set forth herein.

67. Defendants issued legal process to plaintiff when they placed her under arrest, and when defendant Police Officer STEPHEN PENARANDA entered false information onto and signed the supporting deposition containing false information and filed the fraudulent

document with the New York County Criminal Court in support of the criminal court complaint that charged plaintiff with crimes she did not commit.

68. Defendants arrested plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process, namely to retaliate against plaintiff for requesting the badge number of arresting police officer STEPHEN PENARANDA.

69. Defendants acted with intent to do harm to plaintiff without excuse or justification.

70. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, deprivation of her constitutional rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

SIXTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants despite being aware that plaintiff was seriously injured delayed plaintiff's medical treatment and refused to administer and properly procure, immediate and adequate medical attention.

75. The delay in medical treatment to plaintiff's injuries resulted serious post-migraine and vomiting symptoms that would have been prevented if plaintiff was treated in a timely manner.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, and the New York City Department of Correction which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

85. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, arresting individuals they suspect violate orders of protection, but without probable cause or reasonably articulable suspicion to believe they violated the orders of protection, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

86. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

88. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

89. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

90. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

NINTH CAUSE OF ACTION

Failure to Intervene

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

93. Defendants failed to intervene to prevent the unlawful conduct described herein.

94. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

95. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the United States Constitution and laws of the State of New York.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

97. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff SHARON WILLIAMS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 6, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
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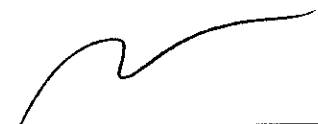
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
April 6, 2015



STUART E. JACOBS